

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 28, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

Line 8	25CV469136	Dawne Shackelford v. Ameer Alghusain	Plaintiff's motion to stay proceedings due to pending criminal proceedings. The motion is not accompanied by a proof of service, and no defendant has been served the summons and complaint. The motion is DENIED WITHOUT PREJUDICE . For the court to determine whether to stay proceedings, the court needs more information about the pending criminal proceedings. Information about those proceedings must be made under penalty of perjury (e.g., by sworn declaration), preferably also accompanied by documentation from the criminal proceedings. Further, to the extent any claims in this civil action may be subject to arbitration, the moving party must submit evidence regarding the existence of a binding arbitration agreement. The court will prepare the order.
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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	2004-1-CV-017343	American Contractors Indemnity Company v. Contractors Bond Brokerage I	Order of examination: <u>parties ordered to appear.</u>
Line 2	2004-1-CV-017343	American Contractors Indemnity Company v. Contractors Bond Brokerage I	Order of examination: <u>parties ordered to appear.</u>
Line 3	2015-1-CV-288617	Vishal Gobhil et al. v. IDC Technologies, Inc. ("IDC") et al.	Order of examination: <u>parties ordered to appear.</u>
Line 4	2015-1-CV-288617	Vishal Gobhil et al. v. IDC Technologies, Inc. ("IDC") et al.	Order of examination: <u>parties ordered to appear.</u>

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Calendar Line 1

Case Name: Jessica Martinez v. Hyperice Mexico Holdings, LLC et al.

Case No.: 25CV464307

This is an action for products liability and negligence brought by plaintiff Jessica Martinez (Martinez).

The original and still operative complaint, filed in April 2025, alleges two causes of action: (1) strict product liability; and (2) negligence. Both causes of action are alleged against “Defendants,” and this term is not defined in the complaint. The complaint was filed against defendants Hyperice Mexico Holdings, LLC (Hyperice Mexico), Best Buy Stores, LP (Best Buy), and Doe defendants. The only references to Doe defendants are in paragraphs 1, 4, and 5 of the complaint. The complaint alleges that Martinez purchased a “Hyperice Hypervolt Bluetooth Percussion Massage Device, Model Number 53100 038-00” from a Best Buy location in San Jose, California on December 15, 2020. Approximately two-and-one-half years later, on May 2, 2023, Martinez “dissected her vertebral artery, causing dizziness, weakness, vomiting, and an ischemic stroke” while using the device. (Complaint, ¶¶ 8-9.) There are no exhibits attached to the complaint.

Martinez filed a Doe amendment in July 2025 under Code of Civil Procedure section 474 (section 474), stating that “Plaintiffs” had “learned the true name for the defendant sued in the Complaint as Doe 1 and hereby substitute the true name of Hyperice Inc. for the fictitious name wherever it appears in the Complaint.” The name “Doe 1” does not appear anywhere in the complaint; the Doe defendants are only referred to collectively in the complaint.

At issue is a demurrer to the complaint’s first cause of action by Hyperice, Inc. (hereafter, Hyperice), which Martinez opposes.

DEMURRER - LEGAL STANDARDS

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

The court cannot consider extrinsic evidence when ruling on a demurrer. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

DISCUSSION